

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF ATAMANOVA AND OTHERS v. RUSSIA

(Applications nos. 45205/22 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

22 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Atamanova and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 1 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants in the protest against the Russian military attack on Ukraine, which was held on 27 February 2022 in Moscow. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 10 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 22 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	45205/22 08/09/2022	**Anastasiya Aleksandrovna ATAMANOVA** 1999		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 23/06/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.34 p.m. until 11.15 p.m. on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
2.	54946/22 18/11/2022	**Aleksandr Viktorovich TELEGIN** 1989	Ushakov Timofey Borisovich Kokoshkino	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 19/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.45 p.m. on 27/02/2022 until 1.30 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	54948/22 18/11/2022	**Nikolay Pavlovich KONOTOPOV** 1987	Ushakov Timofey Borisovich Kokoshkino	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 05/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.20 p.m. on 27/02/2022 until 1.05 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	55947/22 07/11/2022	**Dmitriy Sergeyevich YEMELIN** 1987		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 07/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.15 p.m. until 11.30 p.m. on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	56895/22 08/12/2022	**Levard Igorevich ANUA** 1996	Ushakov Timofey Borisovich Kokoshkino	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 27/02/2022 until 1.40 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	56896/22 08/12/2022	**Anastasiya Sergeyevna ISAKOVA** 1996	Ushakov Timofey Borisovich Kokoshkino	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.10 p.m. on 27/02/2022 until 12.05 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	57263/22 06/11/2022	**Semen KUZMIN** 1996	Baranova Natalya Andreyevna Moscow	article 20.2 § 5 of CAO	fine of RUB 11,000	Moscow City Court 07/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.15 p.m. on 27/02/2022 until 2.30 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	57336/22 19/11/2022	**Olga Sergeyevna KORSHAKOVA** 1979	Baranova Nataliya Andreyevna Moscow	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 19/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.30 p.m. on 27/02/2022 until 2 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	57720/22 08/12/2022	**Nikita Gennadyevich VOROBYEV** 1988	Ushakov Timofey Borisovich Kokoshkino	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.40 p.m. on 27/02/2022 until 2.05 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	57727/22 08/12/2022	**Grigoriy Viktorovich PASHUKHIN** 1981	Ushakov Timofey Borisovich Kokoshkino	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 15/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.25 p.m. on 27/02/2022 until 1.35 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
11.	849/23 15/12/2022	**Irina Yuryevna VASILYEVA** 1963		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.30 p.m. on 27/02/2022 until 3.15 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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12.	1062/23 20/12/2022	**Anastasiya Konstantinovna NEKLYUDOVA** 1995	Simonov Maksim Vitalyevich Voskresenskiy	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 29/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 27/02/2022 until 2 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
13.	1522/23 21/12/2022	**Marina Yuryevna KONSHINA** 1980	Bochilo Anna Yevgenyevna Barnaul	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 25/07/2022 (Neither the applicant, nor her lawyer were present at the hearing on 25/07/2022. The administrative case file was returned to the first-instance court (the Dorogomilovskiy District Court in Moscow) and was available in its registry on unknown date. The applicant alleges that the appeal decision was never sent to her, that she tried to obtain its copy on 29/09/2022 (she submits a copy	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.25 p.m. on 27/02/2022 to 3.30 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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						of her request lodged online to the Moscow City Court) and that she eventually obtained the copy of the appeal decision on 10/11/2022, when it was dispatched to her by the Dorogomilovskiy District Court in Moscow).		
14.	1830/23 05/12/2022	**Stella Shokur NAZARI** 1997	Simonov Maksim Vitalyevich Voskresenskiy	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 09/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 27/02/2022 until 2 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
15.	1837/23 05/12/2022	**Yekaterina Sergeyevna MEDVEDEVA** 1990	Simonov Maksim Vitalyevich Voskresenskiy	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 09/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 27/02/2022 until 2 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	2030/23 06/12/2022	**Yelizaveta Anatolyevna VOLOVATOVA** 1995		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 15/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.30 p.m. on 27/02/2022 until 12.10 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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17.	2076/23 03/12/2022	**Andrey Petrovich KONOPLEV** 1981	Baranova Natalya Andreyevna Moscow	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 09/08/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
18.	2362/23 05/12/2022	**Yekaterina Aleksandrovna GULYNINA** 1998		article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 05/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.35 p.m. on 27/02/2022 until 1.20 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	3659/23 19/12/2022	**Valeriya Igorevna OLEYNIKOVA** 2000		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 23/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.40 p.m. until 11.50 p.m. on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	3822/23 29/12/2022	**Aleksey Vitalyevich SHEVCHENKO** 1989		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 05/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.30 p.m. on 27/02/2022 until 12.10 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
21.	3832/23 20/12/2022	**Yelizaveta Dmitriyevna KARPOVA** 1994	Simonov Maksim Vitalyevich Voskresenskiy	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 23/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 27/02/2022 to 2 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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22.	4681/23 12/01/2023	**Anna YATSENKO** 2002		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/09/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 5.50 p.m. on 27/02/2022 until 12.30 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	4915/23 12/12/2022	**Roman YATSENKO** 1975		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.50 p.m. on 27/02/2022 until 12.30 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	4981/23 08/01/2023	**Kirill Andreyevich BELEYEVSKIY** 1999		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.19 p.m. to 11.15 p.m. on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
25.	6735/23 09/01/2022	**Mariya Nikolayevna ORLOVA** 1992		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.18 p.m. on 27/02/2022 until 6.38 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.